

Scorza: “Data harvested by artificial intelligence, because our investigation”

Intervention by Guido Scorza, member of the Authority for the protection of personal data
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The personal data of billions of people, fragments of their personal identity and “representative titles” of a fundamental right such as the right to privacy, are literally harvested by the large factories of global artificial intelligence for the training of their algorithms and, therefore, transformed into commercial and technological assets for a few, enabling them to conduct business. This all happens as if the web were an immense prairie where everything belongs to everyone, and anyone can therefore seize it and make it their own for any purpose.

****The problem of purpose change****

But perhaps this image is, at least, inaccurate. The personal data that the crawlers of big tech companies in artificial intelligence collect online are, in fact, published by a plurality of subjects – the managers of websites – for a series of necessarily predetermined purposes that differ from algorithm training: the right of reporting in the case of publishers, transparency in the case of public administrations, a contract with the interested parties in the case of sites intended for the publication of all types of announcements from commercial to personal and sentimental, etc.

And it is precisely here that the doubt arises, which we would like to explore with a preliminary inquiry as the Authority for the protection of personal data, and around which we would like to initiate a broad and shared reflection: should or should not the managers of individual websites that constitute the “pastures” through which the algorithms of the major artificial intelligence companies are fed protect their boundaries with appropriate security measures capable of preventing third parties from appropriating what they publish for a specific purpose? And in the case of an affirmative answer, what could be a reasonable threshold for such an obligation? Could it, for example, involve the adoption, at least, of the tools that, precisely for this purpose – even if, in reality, based on concerns primarily related to copyright and unfair competition – the large algorithm factories or, at least, some of them already make available and that some publishers – see, for example, the case of the New York Times – have already announced they have implemented?

Of course, this is not the only possible answer. It would be a mistake to claim certainty about this or that solution because the matter is complex, but the issue seems to deserve more attention than it has received so far around the world.

****Security measures against web scraping****

However, to the data controller who processes personal data for a certain purpose and does not take appropriate security measures to protect such data from potential different uses, even by third parties, non-compliance with European regulations is typically contested precisely for failing to defend data that never become “theirs” but for which they have, at most, a right of use for a certain purpose. Certainly, the measures in question, such as those in Article 25 or those in Article 32, must always be proportionate. Are there measures in this specific case that could be considered such? One might think so, looking at the ease with which at least the tools made available to website managers by some of the AI giants can be implemented on websites.

It is an exercise that does not seem more complex than that necessary, through similar commands, to ensure that the content of a web page is excluded from indexing, for example, for reasons related to the right to be forgotten, thus an exercise seemingly accessible, to which those in the field have been accustomed for a long time. But this could also serve the preliminary inquiry.

****The need to understand if and what can be done****

No certainties, no measures, no definitive decisions, but the need to understand if and what can be done – regardless of continuing to ask ourselves, at the national and European level, if and what could be the legal basis that legitimizes an algorithm factory to process the personal data of billions of people for training them, without asking for any consent – to ensure that the unstoppable and valuable development of artificial intelligences occurs without completely overwhelming the rights of individuals and, of course, particularly, the right to privacy.

For the purposes of the inquiry, which will conclude sixty days after its launch, the contributions that can be submitted by the interested trade associations, consumer associations, experts, and representatives of the academic world will be important. The primary objective, in short, is to understand.

****Next step: evaluate measures****

Then, once the inquiry is closed, evaluations will be made, and if it is deemed that the prerequisites exist, it will be assessed whether and what measures to adopt to ensure that any obligations found to rest with the managers of the websites, data controllers, are effectively fulfilled. However, from here to there, the start of the inquiry...

****Cognitive Value****

It is likely, however, to draw the attention of all data controllers concerned to the opportunity, in a logic of accountability and in terms of privacy by design and by default, to address the issue and tackle it as, moreover, some publishers around the world have recently done, albeit in defense of their copyright.

Why should the right to privacy of billions of people be worth less than the right of authorship? They are both fundamental rights, each deserving to be protected, defended, and managed in the best possible way according to the state of the art.